

Application notice

For help in completing this form please read the notes for guidance form N244Notes.

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Name of court Leeds County Court	Claim no. 700MC593
Fee account no. (if applicable)	Help with Fees – Ref. no. (if applicable)
	H W F – Z G G – K J 5
Warrant no. (if applicable)	
Claimant's name (including ref.) Abdul Alim	
Defendant's name (including ref.) Ashley McGhee	
Date	21/01/2026

1. What is your name or, if you are a legal representative, the name of your firm?

Abdul Alim

2. Are you a ☒ Claimant ☐ Defendant ☐ Legal Representative

☐ Other (please specify)

If you are a legal representative whom do you represent?

3. What order are you asking the court to make and why?

I apply for an order staying the hearing listed for 9 February 2026 and for the matter to be listed before a different judge.

4. Have you attached a draft of the order you are applying for? ☐ Yes ☒ No

5. How do you want to have this application dealt with? ☐ at a hearing ☒ without a hearing

☐ at a remote hearing

6. How long do you think the hearing will last? Hours Minutes

Is this time estimate agreed by all parties? ☐ Yes ☐ No

7. Give details of any fixed trial date or period

9th February 2026

8. What level of Judge does your hearing need?

District Judge

9. Who should be served with this application?

Defendant's solicitor: Mr A. Robertson

9a. Please give the service address, (other than details of the claimant or defendant) of any party named in question 9.

Andrew Robertson, 1 Park Row, Leeds, LS1 5AB, United Kingdom

10. What information will you be relying on, in support of your application?

- ☐ the attached witness statement
- ☒ the statement of case
- ☒ the evidence set out in the box below

If necessary, please continue on a separate sheet.

I apply for a stay of the hearing listed for 9 February 2026 and for the matter to be listed before a different judge in order to avoid further prejudice and to ensure that the proceedings are conducted fairly and in accordance with the overriding objective.

On the 7th of January 2026, I went to a hearing to hear the defendant's strike out application of a different case. This other hearing was about a claim made against Ms McAllister whom I allege was discriminatory towards me for my race, religion and disability. I also allege her actions to be fraudulent which caused me significant harm. I prepared for this hearing including reading the application and trying to understand it as a person in litigant.

I arrived in Leeds to see 4 people representing the defendant of this other case. This was extremely inappropriate and intimidating. The judge, Judge Geddes, should have considered this excessive but showed no regards and I was never given the opportunity to voice my concerns.

The representative made numerous last minute changes and submissions which undermined by ability to defend against this strike out. The Defendant served further material on the day of the hearing, including additional bundles. These bundles were provided to the judge but not myself. I had no reasonable opportunity to read, consider, or respond to this material. Despite this, the Court adjourned briefly for Judge Geddes to read the material and permitted the Defendant to make extensive submissions relying upon it, while I was not afforded equivalent time or opportunity to address the new matters raised. This created a material inequality of arms and caused significant procedural prejudice. Judge Geddes accepted these actions, showing no regards to the prejudice to me.

Rather than hearing the strike-out application as pleaded, Judge Geddes and the Defendant addressed at length the possibility of combining multiple cases, including this one. I was not given any prior notice or opportunity to consider or respond to this issue. I consider this to have been procedurally inappropriate and prejudicial to me, as it introduced a significant case-management issue without allowing me a fair opportunity to be heard.

I raised this with Judge Geddes, explaining that the application before the Court was for strike-out, not for consolidation of proceedings. Judge Geddes dismissed this point by referring to a line in the Defendant's application stating that the Court was "invited" to consider combining applications. That reference was not framed as a formal application and appeared as a minor point within a submission exceeding 500 pages, the substance of which concerned strike-out.

Further, assumptions were made during the hearing which treated the absence of evidence as a failure or choice on my part, notwithstanding that the proceedings were at an interlocutory stage and no directions for evidence had yet been made. In effect, contested factual matters were addressed or assumed prematurely, contrary to the well-established principles governing strike-out and case management applications. I respectfully submit that these matters raise serious concerns of procedural unfairness. A stay is therefore necessary to prevent further prejudice pending resolution of those issues and any appeal of interlocutory decisions said to involve errors of law and procedural irregularity.

I also seek that the matter be listed before a different judge. I have no faith in Judge Geddes to hear these matters. I submit that a fair-minded and informed observer would conclude that there is a real possibility of apparent bias arising from the procedural handling of the previous hearing, including the reliance on late-served material and the limitation of my opportunity to respond.

In those circumstances, reassignment is necessary to preserve confidence in the fairness of the process and to ensure that the case is determined impartially and on an equal footing. Granting a stay and reassignment would further, rather than undermine, the overriding objective by ensuring that the case proceeds fairly, proportionately, and without avoidable prejudice.

11. Do you believe you, or a witness who will give evidence on your behalf, are vulnerable in any way which the court needs to consider?

☒ Yes. Please explain in what way you or the witness are vulnerable and what steps, support or adjustments you wish the court and the judge to consider.

ADHD, GAD, anxiety.

☐ No

Statement of Truth

I understand that proceedings for contempt of court may be brought against a person who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

- ☒ **I believe** that the facts stated in section 10 (and any continuation sheets) are true.
- ☐ **The applicant believes** that the facts stated in section 10 (and any continuation sheets) are true. **I am authorised** by the applicant to sign this statement.

Signature

Abdul Alim

- ☒ Applicant
- ☐ Litigation friend (where applicant is a child or a Protected Party)
- ☐ Applicant's legal representative (as defined by CPR 2.3(1))

Date

Day

2 1

Month

0 1

Year

2 0 2 6

Full name

Abdul Alim

Name of applicant's legal representative's firm

If signing on behalf of firm or company give position or office held

Applicant's address to which documents should be sent.

Building and street

52 Blakeridge Mill

Second line of address

Town or city

Batley

County (optional)

Postcode

W	F	1	7	8	R	A
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If applicable

Phone number

07947980877

Fax phone number

DX number

Your Ref.

Email

Abdul_Alim1997@live.co.uk